

EX 2816/2023

Counsel for Decree-Holder
absent.

Counsel for Judgment-Debtor No.2
had filed order passed by joint
director Co-operative society and chit
fund Bengaluru in
JRB/chits/appeal/24-2024-25.

As per the said order the joint
director co-operative society and chit
fund has stayed the order passed in
DRB-4/CFS/19/2019-20 dt:18.08.2023
and recovery certificate in respect of
property belonging to Judgment-
Debtor No.2. this execution petition is
filed for recovery of money as per
award passed in DRB-4/CFS/19/2019-
20 dt:18.08.2023 and since the
award is stayed so also recovery
certificate in respect of Judgment-
Debtor No.2 is stayed, the execution
petition cannot be further proceed
with.

In view of stay of Arbitration
Award by the competent authority,
the execution petition is required to
be disposed granting liberty to
Decree-Holder to file fresh
application after disposal of appeal.

Accordingly I pass following:

ORDER

The execution petition is ordered to be closed in view of stay passed in Chit Appeal No. JRB/chits/appeal/24-2024-25 granting liberty to Decree-Holder to file fresh petition after disposal of appeal.

XLIII ACC & SJ, Bengaluru.